

HARLOW ET AL. *v.* FITZGERALDCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE DISTRICT OF COLUMBIA CIRCUIT

No. 80-945. Argued November 30, 1981—Decided June 24, 1982

In respondent's civil damages action in Federal District Court based on his alleged unlawful discharge from employment in the Department of the Air Force, petitioners, White House aides to former President Nixon, were codefendants with him and were claimed to have participated in the same alleged conspiracy to violate respondent's constitutional and statutory rights as was involved in *Nixon v. Fitzgerald*, ante, p. 731. After extensive pretrial discovery, the District Court denied the motions of petitioners and the former President for summary judgment, holding, *inter alia*, that petitioners were not entitled to absolute immunity from suit. Independently of the former President, petitioners appealed the denial of their immunity defense, but the Court of Appeals dismissed the appeal.

Held:

1. Government officials whose special functions or constitutional status requires complete protection from suits for damages—including certain officials of the Executive Branch, such as prosecutors and similar officials, see *Butz v. Economou*, 438 U. S. 478, and the President, *Nixon v. Fitzgerald*, ante, p. 731—are entitled to the defense of absolute immunity. However, executive officials in general are usually entitled to only qualified or good-faith immunity. The recognition of a qualified immunity defense for high executives reflects an attempt to balance competing values: not only the importance of a damages remedy to protect the rights of citizens, but also the need to protect officials who are required to exercise discretion and the related public interest in encouraging the vigorous exercise of official authority. *Scheuer v. Rhodes*, 416 U. S. 232. Federal officials seeking absolute immunity from personal liability for unconstitutional conduct must bear the burden of showing that public policy requires an exemption of that scope. Pp. 806-808.

2. Public policy does not require a blanket recognition of absolute immunity for Presidential aides. Cf. *Butz*, supra. Pp. 808-813.

(a) The rationale of *Gravel v. United States*, 408 U. S. 606—which held the Speech and Debate Clause derivatively applicable to the “legislative acts” of a Senator’s aide that would have been privileged if performed by the Senator himself—does not mandate “derivative” absolute